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Gold Star Designation: An Overview

Background

During the years of U.S. participation in World War I (WWI, 1917-1918), an informal practice developed where some families would display service banners adorned with blue stars in the windows of their homes to signify participation in the armed forces. Each blue star symbolized a family member serving in the war. When a servicemember was killed or died, it became customary for families to replace the blue star with a gold star.

In a separate but related practice, President Woodrow Wilson expressed support in May 1918 for a recommendation made by the Women's Committee of the Council for National Defense that American women should wear a black band on the upper left arm, affixed with a gold star to signify the loss of a family member during the war.

In October 1942, Congress enacted P.L. 77-750 "to authorize the Secretary of War to approve a standard design for a service flag and a service lapel button."

Current policy by the Department of Defense (DOD), which is "using a secondary Department of War designation," under Executive Order 14347 dated September 5, 2025, regarding display of the gold star on the Service Flag is contained in DOD Instruction (DODI) 1348.36, *Gold Star Lapel Button, Service Flag, and Service Lapel Button*. The policy remains essentially unchanged, stating: "If the Service member symbolized is killed or dies from causes other than dishonorable, the star representing that individual will have a gold star of smaller size superimposed on it, so that the blue forms a border."

Gold Star Lapel Button

In 1947, Congress enacted P.L.80-306, requiring the "Secretary of War and the Secretary of the Navy" to provide Gold Star Lapel Buttons (GSLB) "for widows, parents, and next of kin of members of the armed forces who lost their lives" in the U.S. armed services during World War II (WWII). The GSLB has a gold star mounted on a purple surface surrounded by laurel leaves. See **Figure 1**. GLSB eligibility has evolved over time. Current criteria are outlined under 10 U.S.C. §1126(a): "A lapel button, to be known as the gold star lapel button, shall be designed, as approved by the Secretary of Defense, to identify next of kin of members of the armed forces—(1) who lost their lives during World War I, World War II, or during any subsequent period of armed hostilities in which the United States was engaged before July 1, 1958; (2) who lost or lose their lives after June 30, 1958—(A) while engaged in an action against an enemy of the United States; (B) while engaged in military operations involving conflict with an opposing foreign force; or (C) while serving with friendly foreign forces engaged in an armed conflict in which the United States is not a belligerent party against an opposing armed force; or (3) who lost or lose their lives after March 28, 1973, as a result of—(A) an international terrorist attack against the United States or a foreign nation friendly to the United States, recognized as such an attack by the Secretary of Defense; or (B) military operations while serving outside the United States (including the commonwealths, territories, and possessions of the United States) as part of a peacekeeping force."

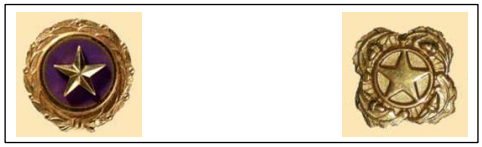
Under 10 U.S.C. §1126(d)(1), "The term "next of kin" means individuals standing in such relationship to members of the Armed Forces described in subsection (a) as the Secretaries concerned shall jointly specify in regulations for purposes of this section." Section 3.3 of DODI 1348.36 details who may wear the GSLB.

Families of servicemembers who died in circumstances other than those listed under 10 U.S.C. §1126(a) may not be eligible for the Gold Star Lapel Button. However, they may be eligible to display a gold star on the Service Flag and may qualify for the Next of Kin Lapel Button. (For more information, see DODI 1348.36 in Sections 4.1-4.3.)

Next of Kin Lapel Button

Approved in 1973, the Next of Kin Lapel Button (also referred to as the Next of Kin Pin) is provided to the families of servicemembers who lost their lives while serving on active duty or while serving in a drill status as a member of the National Guard or Reserves in circumstance other than killed in action. The Next of Kin Lapel Button is gold, with a star within a circle of sprigs of oak. According to DOD's Casualty, Mortuary Affairs, and Military Funeral Honors Programs Content Guide, the star denotes honorable service and the oak sprigs symbolize the Army, Navy, Marine Corps, and Air Force.

Figure 1. Gold Star Lapel Button (left) and Next of Kin Lapel Button (right)



Source: Tragedy Assistance Program for Survivors (TAPS) at https://www.taps.org/articles/15-2/goldstarpins

Military Death Benefits

After the death of a servicemember on active duty, the respective military department assigns a casualty assistance officer to assist any surviving spouse, child(ren), or other designated beneficiaries, with all eligible benefits and entitlements. These generally include the following:

- $100,000 tax-exempt, lump sum, DOD death gratuity paid to designated beneficiaries.
- Burial assistance including the disposition of remains and travel to the burial site for the servicemember's immediate family.
- Any unpaid pay and allowances at the time of death.

- Residence in government housing or payment of Basic Allowance for Housing (BAH) for up to a year.
- Access to commissaries and exchanges.
- TRICARE benefits.
- Up to $500,000 non-taxable Servicemembers' Group Life Insurance (SGLI) payments (distributed as a lump sum or in 36 equal monthly payments).
- One or more survivor benefit annuities (DOD Survivor Benefit Plan, Social Security and/or the Department of Veterans Affairs Dependency and Indemnity Compensation).

Each benefit described above has unique eligibility criteria. Survivors may qualify for a benefit based on their unique circumstances. For additional guidance on survivor benefits, see DOD's Support for Survivors Guide and the Benefits Finder. Separately, DOD also provides eligible surviving family members with authorized access to online survivor benefits reports, which guide survivors through benefits eligibility. For additional information on selected benefits, see also VA Benefits for Veterans' Spouses, Dependents, and Survivors site and CRS Report R45325, *Military Survivor Benefit Plan: Background and Issues for Congress*.

Selected Legislation

Congress has enacted several laws related to the Gold Star designation and Gold Star families.

Gold Star Mothers and Widows Pilgrimage. To enable the mothers and widows of deceased American servicemembers interred in European cemeteries to make a pilgrimage to these cemeteries. Mar. 2, 1929, P.L. 70-952, 45 Stat. 1508.

Gold Star Mother's Day. To designate the last Sunday in September as "Gold Star Mother's Day," and for other purposes. June 23, 1936, Pub. Res. 74-123, 49 Stat. 1895.

Service Flag and Lapel Button. To authorize the Secretary of War to approve a standard design for a service flag and a lapel button. Oct. 17, 1942, P.L. 77-750, 56 Stat. 796.

GSLB and WWII. To provide appropriate lapel buttons for widows, parents, and next of kin of members of the Armed Forces who lost their lives in the U.S. armed services in WWII. Aug. 1, 1947, P.L. 80-306, 61 Stat. 710.

GSLB and Subsequent Conflicts. To provide appropriate lapel buttons for widows, parents, and next of kin members of the Armed Forces who lost or lose their lives in the armed services of the United States during World War II or during any subsequent war or period of armed hostilities. Aug. 21, 1951, P.L.82-121, 66 Stat. 195.

GSLB and the Cold War. To amend Title 10, *U.S. Code*, to provide gold star lapel buttons for the next of kin of members of the Armed Forces who lost or lose their lives in war or as a result of cold war incidents. Aug. 11, 1966, P.L. 89-534, 80 Stat. 345.

Gold Star Wives, Inc. To incorporate the Gold Star Wives of America. Dec. 4, 1980, P.L. 96-497, 94 Stat. 2595.

American Gold Star Mothers, Inc. To recognize the organization known as the American Gold Star Mothers, Incorporated. June 12, 1984, P.L. 98-314, 98 Stat. 237.

National Defense Authorization Act (NDAA) for FY1994, Section 1143. Award of gold star lapel buttons to survivors of servicemembers killed by terrorist acts. Nov. 30, 1993, P.L. 103-160, 107 Stat. 1757.

NDAA for FY2006, Section 562. Policy and Procedures on Casualty Assistance to Survivors of Military Decedents. Jan. 6, 2006, P.L. 109-163, 119 Stat. 3267, as amended by P.L. 109-364, Div. A, Title V, §566, Oct. 17, 2006, 120 Stat. 2223.

NDAA for FY2013, Section 2859. Establishment of a commemorative work to Gold Star Mothers. Jan. 2, 2013, P.L. 112-239, 126 Stat. 2164.

NDAA for FY2014, Section 633. Improved assistance for Gold Star spouses and other dependents. Dec. 26, 2013, P.L. 113-66, 127 Stat. 786.

Gold Star Fathers Act of 2015. To amend chapter 21 of Title 5, *U.S. Code*, to provide that fathers of certain permanently disabled or deceased veterans shall be included with mothers of such veterans as preference eligibles for treatment in the civil service. Oct. 7, 2015, P.L. 114-62, 129 Stat. 547.

Gold Star Families Voices Act. To amend the Veterans' Oral History Project Act to allow the collection of video and audio recordings of biographical histories by immediate family members of the Armed Forces who died as a result of their service during a period of war. Nov. 28, 2016, P.L. 114-246, 130 Stat. 995.

NDAA for FY2020, Section 581. Modification of authorities on eligibility for and replacement of gold star lapel buttons. Dec. 20, 2019, P.L. 116-92, 133 Stat. 1411.

NDAA for FY2021, Sections 624 and 625. Expansion of assistance for Gold Star spouses and other dependents (Sec. 624). Gold Star Families Parks Pass (Sec. 625). Jan. 1, 2021, P.L. 116-283, 134 Stat. 3677.

NDAA for FY2022, Sections 626(c) and 1061. Establishment of certain definitions (Sec. 626(c)). Inclusion of support services for Gold Star families in quadrennial quality of life review (Sec. 1061). P.L. 117-81, Dec. 27, 2021; 135 Stat. 1775 and 135 Stat. 1909.

Consolidated Appropriations Act, 2022, **Section 114**. Green and Gold Congressional Aide Program. P.L. 117-103**,** Mar. 15, 2022, 136 Stat. 511.

Consolidated Appropriations Act, 2023, **Section 642.** Waiver of special use permit application fee for veterans' special events. P.L. 117-328, Dec. 29, 2022, 136 Stat. 5612.

Relevant Statutes

Title 10 *U.S. Code* §1126 – Gold star lapel button: eligibility and distribution.

Title 10 *U.S. Code* §1475 – Death gratuity: death of members on active duty or inactive duty training.

Title 36 *U.S. Code* Ch. 211 – American Gold Star Mothers, Inc.

Title 36 *U.S. Code* Ch. 805 – Gold Star Wives of America, Inc.

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